

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christina Vuong	Team: Team # 3	CCRB Case #: 201405227	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 05/28/2014 12:32 PM, Wednesday, 06/18/2014 12:00 AM	Location of Incident: In front of 4725 White Plains Road and at the 47th Precinct stationhouse	18 Mo. SOL 11/28/2015	Precinct: 47
Date/Time CV Reported Wed, 05/28/2014 7:08 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 05/28/2014 7:08 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Escudero	26192	948333	047 PCT
2. POM Reuben Antwi	25102	948300	047 PCT
3. An officer			047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Edward Lenis	04355	922639	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Escudero	Abuse: On May 28, 2014, in front of 4725 White Plains Road in the Bronx, PO Matthew Escudero strip searched § 87(2)(b)	A . Unsubstantiated
B . POM Matthew Escudero	Force: On May 28, 2014, in front of 4725 White Plains Road in the Bronx, PO Matthew Escudero used physical force against § 87(2)(b)	B . Exonerated
C . POM Reuben Antwi	Abuse: On May 28, 2014, in front of 4725 White Plains Road in the Bronx, PO Reuben Antwi frisked § 87(2)(b)	C . Substantiated
D . POM Reuben Antwi	Abuse: On May 28, 2014, in front of 4725 White Plains Road in the Bronx, PO Reuben Antwi detained § 87(2)(b)	D . Unsubstantiated
E . An officer	Abuse: On May 28, 2014, at the 47th Precinct stationhouse, an officer strip searched § 87(2)(b)	E . Unfounded
F . An officer	Abuse: On May 28, 2014, at the 47th Precinct stationhouse, an officer strip searched § 87(2)(b)	F . Unfounded
G . POM Matthew Escudero	Abuse: On June 18, 2014, in front of 4725 White Plains Road in the Bronx, PO Matthew Escudero frisked § 87(2)(b)	G . Unsubstantiated
H . An officer	Abuse: On June 18, 2014, in front of 4725 White Plains Road in the Bronx, an officer frisked § 87(2)(b)	H . Officer(s) Unidentified
I . POM Matthew Escudero	Abuse: On June 18, 2014, at the 47th Precinct stationhouse, PO Matthew Escudero strip searched § 87(2)(b) and § 87(2)(b)	I . Unsubstantiated
J . An officer	Abuse: On June 18, 2014, at the 47th Precinct stationhouse, an officer strip searched § 87(2)(b)	J . Unfounded
§ 87(4-b) § 87(2)(g)		

Case Summary

On May 28, 2014 at 12:32 a.m., § 87(2)(b) and his friends § 87(2)(b) and § 87(2)(b)'s girlfriend § 87(2)(b) were talking in front of 4725 White Plains Road, by St. Ouen Street in the Bronx (encl. D1-6, D12-18). § 87(2)(b) admitted to smoking marijuana when he was stopped. PO Matthew Escudero and PO Reuben Antwi of the 47th Precinct stopped § 87(2)(b) and § 87(2)(b). PO Escudero frisked and searched § 87(2)(b). PO Escudero allegedly pulled § 87(2)(b)'s waistband away from his body (**Allegation A**). PO Escudero recovered a marijuana cigarette from § 87(2)(b) and tossed it onto the sidewalk next to him. § 87(2)(b) attempted to step on the marijuana cigarette, after which a struggle ensued and PO Escudero used physical force against § 87(2)(b) (**Allegation B**). While PO Escudero engaged with § 87(2)(b), PO Antwi frisked § 87(2)(b) (**Allegation C**). § 87(2)(b) was arrested by PO Escudero for § 87(2)(a) 160.50. § 87(2)(b) PO Antwi handcuffed § 87(2)(b) (**Allegation D**), who was later released from the stationhouse with a § 87(2)(a) 160.50 summons.

§ 87(2)(b) separately alleged that on May 28, 2014, an unidentified officer strip searched him at the 47th Precinct stationhouse (**Allegation E**). § 87(2)(b) separately alleged that on May 28, 2014, an unidentified officer strip searched her at the 47th Precinct stationhouse (**Allegation F**).

On June 18, 2014 at 1:05 a.m., PO Escudero and an unidentified officer of the 47th Precinct stopped § 87(2)(b) and § 87(2)(b) in front of 4725 White Plains Road in the Bronx. While PO Escudero allegedly frisked § 87(2)(b), the other officer allegedly frisked § 87(2)(b) (**Allegations G and H**). They were taken to the 41st Precinct stationhouse where PO Escudero allegedly strip searched them (**Allegation I**). PO Escudero issued both civilians § 87(2)(a) 160.50 summonses.

§ 87(2)(b) separately alleged that on June 18, 2014, an unidentified officer strip searched her at the 47th Precinct stationhouse (**Allegation J**).

Mediation, Civil and Criminal Histories

- Because § 87(2)(b) was arrested on May 18, 2014 and because of the strip search allegation, the case was ineligible for mediation.
- As of March 24, 2015, no notice of claim was filed in regards to either incident (encl. H1).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and the first CCRB complaint involving § 87(2)(b) and § 87(2)(b) (encl. B3-6).
- PO Escudero and PO Antwi have both been members of the service for five years and there are no substantiated allegations against either officer (encl. B1-2). § 87(2)(g)

Potential Issues

- § 87(2)(b) stated that with regards to the June 18, 2014 incident, he would only be able to identify PO Escudero during a photo viewing, and not the second officer or stationhouse supervisor, who remain unidentified (encl. D12-18). As such, no photo viewing was conducted.
- § 87(2)(b) was unable to provide the accurate spelling of § 87(2)(b)'s name or his contact information. § 87(2)(b)'s name and address were obtained from his criminal summons, and a Lexis Nexis search was performed, revealing four potential phone numbers. Between September 12, 2014 and November 26, 2014, five messages were left on the only working phone number for § 87(2)(b) with negative results. On August 22, 2014 and September 11, 2014, two please call letters were mailed to § 87(2)(b). None of the letters have been returned to the CCRB as undeliverable, and a check of the New York City Department of Correction database on December 18, 2014 showed that § 87(2)(b) was not incarcerated at the time of the aforementioned contact attempts.
- On October 6, 2014, fieldwork was conducted at the above location (encl. D7-10). A canvass for witnesses and video footage was negative. All but two stores, at which please call letters were left, were closed at the time of the incident.

Civilian Statements

Complainant/Victim: § 87(2)(b) (encl. D12-18)

May 28, 2014

- § 87(2)(b) and his friends were arranged in a line in front of 4725 White Plains Road, and were talking for ten minutes. The street was otherwise empty of persons. He had just lit and began to smoke a marijuana cigarette when he noticed a marked RMP driving north in their direction, along White Plains Road. § 87(2)(b) flicked out the cigarette and tucked it between his boxer waistband and his skin, such that no part of it was visible. § 87(2)(b) denied that there was any smell of marijuana to the area.
- By the time the RMP came to a stop in front of § 87(2)(b) and § 87(2)(b) had already crossed the street, and § 87(2)(b) had walked a few steps away from § 87(2)(b). While PO Escudero approached § 87(2)(b), PO Antwi approached § 87(2)(b).
- PO Escudero frisked § 87(2)(b). When he felt the cigarette in § 87(2)(b)'s waistband, he pulled § 87(2)(b)'s pants from his waist, reached inside, and removed the cigarette. § 87(2)(b) stated that in doing so, PO Escudero saw "a piece of" § 87(2)(b)'s genitals and pubic hair. PO Escudero then handcuffed and searched § 87(2)(b).
- § 87(2)(b) saw PO Antwi frisk § 87(2)(b) both were two feet away. § 87(2)(b) did not observe any other interaction between PO Antwi and § 87(2)(b).
- PO Escudero threw § 87(2)(b)'s marijuana cigarette onto the ground next to them. As PO Escudero searched him, § 87(2)(b) attempted to destroy the cigarette by stepping on it. PO Escudero accused § 87(2)(b) of tampering with evidence. PO Escudero grabbed § 87(2)(b)'s shirt collar, and punched him three times in his throat and chest. § 87(2)(b) stumbled backwards.
- PO Escudero instructed § 87(2)(b) multiple times to get on the ground, which § 87(2)(b) verbally refused to do. As PO Escudero tried to push and pull him down by holding his back and chest, § 87(2)(b) stood firm. After fifteen seconds, PO Escudero grabbed him on his upper torso and threw him sideways into a pile of cardboard boxes. § 87(2)(b) landed on his right side and back. PO Escudero flipped § 87(2)(b) onto his back and had his knee on top of § 87(2)(b)'s back for forty seconds, until back-up units arrived, at which time he was placed into the back of a prisoner van.
- § 87(2)(b) stated that during the course of the incident, § 87(2)(b) and § 87(2)(b) walked back across the street, but he did not notice any crowd form.

- § 87(2)(b) was handcuffed and taken to the stationhouse, but § 87(2)(b) did not know the reason.
- On May 28, 2014, § 87(2)(b) did not seek medical treatment while in police custody. However, he went to § 87(2)(b). He § 87(2)(b)

§ 87(2)(a) PHL § 18(6)

June 18, 2014

- § 87(2)(b) and § 87(2)(b) had been talking for fifteen minutes in front of 4725 White Plains Road when PO Escudero and an unidentified white male officer he could not describe pulled up in a marked RMP. § 87(2)(b) stated that he and § 87(2)(b) had not engaged in any other activity, they made no body movements, and had no items on their persons. PO Escudero informed them that they “can’t be out here.” PO Escudero approached § 87(2)(b) and immediately began frisking him, while his unidentified partner did the same to § 87(2)(b). § 87(2)(b) and § 87(2)(b) were handcuffed and brought to the stationhouse. Neither civilian engaged in any body movements such as squirming en route to the stationhouse or at the front desk.
- At the front desk of the stationhouse, § 87(2)(b) observed PO Escudero speak to a uniformed male lieutenant in his forties with grey hair. One of the two officers said, “Strip search,” after which PO Escudero led them to a private room twenty-five feet from the front desk. § 87(2)(b) went inside first, with PO Escudero. From outside, § 87(2)(b) heard § 87(2)(b) say, “Why do you have to strip search me butt naked?” When it was § 87(2)(b)’s turn, PO Escudero instructed him to remove various articles of clothing, pull down his boxers, squat, and cough. The men were then taken to the cells and later released with § 87(2)(a) 160.50 summonses.

Victims: § 87(2)(b) and § 87(2)(b) (encl. D21)

- On October 31, 2014 and November 13, 2014, § 87(2)(b) and § 87(2)(b) missed two appointments at the CCRB without prior notification to cancel or reschedule, and missed appointment letters were mailed to them in regards. As of the date of this report, neither civilian has contacted the CCRB to reschedule their statement. A check of the New York City Department of Correction database on November 24, 2014 showed that § 87(2)(b) and § 87(2)(b) were not incarcerated at the time of the missed appointments.
- In § 87(2)(b) and § 87(2)(b)’s phone statement on October 21, 2014, § 87(2)(b) alleged that on May 28, 2014, he was detained along with § 87(2)(b) and that he was strip searched at the stationhouse by an unidentified officer. He stated that he was arrested on that date for an offense he did not recall. § 87(2)(b) alleged that on May 28, 2014 as well as on June 18, 2014, she was also taken to and strip searched at the 47th Precinct stationhouse by an unidentified officer.
- § 87(2)(b) denied that on May 28, 2014, § 87(2)(b) had smoked or possessed marijuana. He did not recall seeing PO Escudero reach into § 87(2)(b)’s boxers.
- § 87(2)(b) alleged that on May 28, 2014, PO Escudero tackled § 87(2)(b) into the pile of cardboard boxes, and additional officers joined in to punch § 87(2)(b) in the face and kick him in the body. § 87(2)(b) alleged that multiple officers were involved in throwing § 87(2)(b) into the boxes, and corroborated that the officers were kicking and punching § 87(2)(b) on the ground.
- § 87(2)(b) stated that she began recording the May 28, 2014 incident on her cell phone after § 87(2)(b) was lifted off of the ground, and did not capture any allegations.
- § 87(2)(b) stated that on June 18, 2014, PO Escudero was partnered with a “captain,” whom he described as a Hispanic man with glasses dressed in a white shirt. § 87(2)(b) stated that PO Escudero frisked him, while the “captain” frisked § 87(2)(b).

Officer Statements

Subject Officer: PO MATTHEW ESCUDERO (encl. E16-19)

May 28, 2014

- As PO Escudero drove along White Plains Road, he observed § 87(2)(b) with a group of five or six persons. § 87(2)(b) had a brown leaf in one hand, poured what looked like marijuana from a plastic bag onto the leaf, and then licked the wrapper. Based on his observations, he believed § 87(2)(b) to be rolling a marijuana cigar.
- PO Escudero smelled the odor of marijuana, which grew stronger as he walked closer to the group.
- PO Escudero was focused on § 87(2)(b) and said none of the other civilians stood out to him.
- PO Escudero did not see PO Antwi frisk any civilian.
- PO Escudero stated that a crowd of at least ten individuals formed. He stated that he did not feel safe at the location and wanted to take § 87(2)(b) to the stationhouse where he intended to release § 87(2)(b) with a criminal summons for § 87(2)(b). PO Escudero added that White Plains Road and St. Ouen Street was “dangerous,” and known for prostitution and drug activity.
- § 87(2)(b) admitted to having the marijuana cigar in his waistband, after which PO Escudero saw a part of it sticking out from the waistband. PO Escudero pulled out the cigar without pulling § 87(2)(b)'s pants from his waist, exposing his genitals, or contacting his skin.
- As PO Escudero searched § 87(2)(b), § 87(2)(b) stepped away from him and attempted to destroy the marijuana cigar with his foot. PO Escudero pulled § 87(2)(b)'s arms back, and § 87(2)(b) moved forward in an attempt to escape. In the process of the back-and-forth, which moved from in front of 4725 White Plains Road to the middle of the sidewalk, PO Escudero stated that he noticed the pile of clean, soft, cardboard near them at the curb, and decided to “let go” of § 87(2)(b) on top of them, in order to subdue § 87(2)(b) in the safest way possible.
- PO Escudero did not recall if § 87(2)(b) continued to resist after he was on the ground. PO Escudero stated that he was the sole officer to interact with § 87(2)(b) through the point of placing him into the transport vehicle. PO Escudero denied punching § 87(2)(b) at any point, or kneeling, punching or kicking him on the ground.

June 18, 2014

- In his memo book entry for June 18, 2014, PO Escudero did not note his tour assignment, his RMP assignment, or his partner assignment.
- PO Escudero stated that he had no independent recollection of the incident on June 18, 2014 apart from his memo book entry, in which he noted the issuance of two § 87(2)(a) 160.50 summonses to § 87(2)(b) and § 87(2)(b).
- PO Escudero stated that he did not know if any strip searches were performed on § 87(2)(b) or § 87(2)(b) at the stationhouse.
- PO Escudero did not know with whom he was working with that night. He viewed the June 18, 2014 Tour 1 Roll Call, but it did not refresh his recollection of the incident.

Subject Officer: PO REUBEN ANTWI (encl. E25-27)

- PO Antwi did not witness § 87(2)(b) rolling the blunt, but was informed of this observation from PO Escudero, who pointed out § 87(2)(b) to him.
- PO Antwi saw § 87(2)(b) and his friends shaking hands and turning their heads, but he did not specifically see money exchanged or drugs in open display. Some of the men had their back to him. PO Antwi's observations were seconds in length.
- PO Antwi corroborated an odor of marijuana emanating from the group.

- As he exited the RMP, from a distance of six to eight feet, PO Antwi observed § 87(2)(b) toss a small white object, which he believed to be a bag of crack, a foot away on the ground. PO Antwi could not describe this action or the object in further detail.
- PO Antwi stated that § 87(2)(b) wore a jacket, preventing him from seeing any bulges to his clothing.
- At the time PO Antwi approached, no part of § 87(2)(b)'s body or hands were hidden from public view. PO Antwi did not recall if at any point § 87(2)(b)'s hands were hidden from view.
- PO Antwi stated that he frisked § 87(2)(b) to ensure that § 87(2)(b) had no weapons. The frisk was negative, and PO Antwi denied searching § 87(2)(b). When asked about specific factors that led him to think § 87(2)(b) was armed, PO Antwi stated that it was dark, he previously saw the group engage in the aforementioned furtive arm movements, and "was not sure who had what."
- After the frisk, PO Antwi took a closer look at the discarded object, which he determined to be balled-up tissue or a candy wrapper.
- PO Antwi corroborated that a large crowd formed during the incident.
- PO Antwi saw PO Escudero wrap § 87(2)(b) in a bear hug and move him, in a fashion he could not describe but which he stated was not a throwing motion, to the side into the pile of cardboard boxes. PO Antwi denied seeing PO Escudero punch § 87(2)(b) and he did not observe any struggle occur after § 87(2)(b) landed on the ground. He denied seeing any officer punch, kick, or knee § 87(2)(b) on the ground.

NYPD Documents

May 28, 2014

- SPRINT event summary #D14052800477 noted the arrests of two individuals § 87(2)(b) and § 87(2)(b) at 12:32 a.m. by the Conditions Team at White Plains Road and St. Ouen Street (encl. F1).
- On May 28, 2014, § 87(2)(b) was arrested for § 87(2)(a) 160.50
§ 87(2)(b). The strip search section was checked off with a "no" (encl. E5-9). A marijuana cigarette was vouchered in relation to the arrest and field tested positive (E10-11).
- The 47th Precinct Command Log arrest entry for § 87(2)(b) and § 87(2)(b) on May 28, 2014 had PO Escudero listed as § 87(2)(b)'s arresting officer, PO Antwi listed as § 87(2)(b)'s arresting officer, and Sgt. David Monzon listed as the supervisor verifying arrest (encl. F10-13). There is no Command Log entry for § 87(2)(b) or § 87(2)(b) or reference to any strip searches performed.

June 18, 2014

- PO Escudero's memo book entry on June 18, 2014 did not note his assignment, his partner, or his RMP number (encl. E3-4). He had no further entries in between 1:05 a.m., when he noted the stop and summonses, and his end of tour at 6:35 a.m.
- The SPRINT event summary index on June 18, 2014 between 12 a.m. and 3 a.m. was negative for any related reports in the immediate vicinity of the incident location (encl. F8-9).
- On June 18, 2014, PO Escudero summonsed § 87(2)(b) and § 87(2)(b) for § 87(2)(a) 160.50 (encl. E12-15). The offense time was listed as 1:05 a.m.
- The Command Log arrest entry for § 87(2)(b) and § 87(2)(b) on June 18, 2014 had PO Escudero listed as the arresting officer and Sgt. Edward Lenis listed as the supervisor verifying arrest (encl. F14-18). No strip search is notated. There is no Command Log entry for § 87(2)(b).
- The 47th Precinct Tour 1 Roll Call on June 18, 2014 revealed the following (encl. F28-35):
 - Sgt. Lenis is assigned as the desk sergeant.
 - The only officer on duty during June 18, 2014 Tour 1 of the rank of lieutenant or above was Capt. Stewart Lieber (platoon commander), and his operator was PO Nicholas Vinci. Capt. Lieber is noted in the Command Log to leave for patrol at 12:35 a.m. and return at 8 a.m.

interacted at the stationhouse. PO Escudero had no recollection of the June 18, 2014 incident (encl. E16-19).

- Although Sgt. Lenis was the assigned desk officer and the supervisor who verified the arrest entries for § 87(2)(b) and § 87(2)(b) he was not dressed in a white shirt and he stated in his CCRB interview that he did not recall the incident and had no knowledge of any strip searches (encl. E30-31). Sgt. Lenis also does not match § 87(2)(b)'s description in that he is a 39-year-old, darker-skinned Hispanic man with black hair and brown eyes (encl. E38). § 87(2)(g)
- As mentioned above, Capt. Lieber was the only Tour 1 officer expected to be dressed in a white shirt. However, the Command Log indicated that he had not returned from patrol at the time of the incident.
- As for the other four officers working during Tour 3 on June 17, 2014, Capt. Vucinaj, a § 87(2)(b), white male with brown hair, does not appear to match § 87(2)(b)'s description (encl. E41), does not have a specified start and end of tour, and there is no mention of him in the June 18, 2014 Tour 1 Command Log. Lt. Valentin and Lt. Kenny had ended their tours prior to § 87(2)(b) and § 87(2)(b)'s arrival at the stationhouse. Lt. Kenny, who ended his tour ten minutes prior to the civilians' arrival, also does not match § 87(2)(b)'s description in that he is a § 87(2)(b) white man with brown hair (encl. E40). As for Lt. Raso, the Tour 1 Command Log did not indicate Lt. Raso's presence at the stationhouse during the incident and he did not match § 87(2)(b)'s description in that he is a 5'8" tall, 170-lb white man with brown hair (encl. E43).
- Based on the above, Capt. Lieber, Capt. Vucinaj, Lt. Valentin, Lt. Kenny, and Lt. Raso were not interviewed as subject or witness officers.
- Without § 87(2)(b)'s ability to identify this officer from a photo viewing, or additional evidence, the investigation could not determine the identity of this supervisor, or whether a supervisor authorized a strip search of § 87(2)(b) or § 87(2)(b).

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

Allegation A- Abuse of Authority: On May 28, 2014, in front of 4725 White Plains Road in the Bronx, PO Matthew Escudero strip searched § 87(2)(b)

It is undisputed that PO Escudero recovered a marijuana cigarette from § 87(2)(b)'s person.

§ 87(2)(b) stated that he tucked the marijuana cigarette in between his boxers and his skin, an inch or two below the waistband. He alleged PO Escudero pulled his waistband away from his body, reached inside, and removed the cigarette. § 87(2)(b) stated that in doing so, PO Escudero could see “a piece of” his genitals and pubic hair. § 87(2)(b) was unsure if PO Escudero reached his hand into § 87(2)(b)'s boxers. PO Escudero stated that § 87(2)(b) admitted to having the blunt in his waistband, after which he observed the blunt sticking out from the waistband and pulled it out. PO Escudero denied pulling § 87(2)(b)'s waistband away from his body, exposing his genitals, or contacting his skin. PO Antwi did not observe his partner search § 87(2)(b) or recover the cigarette.

§ 87(2)(g)

Therefore, it is recommended that Allegation A be **unsubstantiated**.

Allegation B- Force: On May 28, 2014, in front of 4725 White Plains Road in the Bronx, PO Matthew Escudero used physical force against § 87(2)(b)

It is undisputed that, while handcuffed, § 87(2)(b) attempted to destroy the marijuana cigarette by stepping on it. It is undisputed that § 87(2)(b) physically resisted PO Escudero's verbal directives. It is undisputed that PO Escudero brought § 87(2)(b) down into a pile of cardboard boxes.

§ 87(2)(b) alleged PO Escudero punched him three times in the throat and chest, threw him into the pile of cardboard boxes, then kned him in his back. § 87(2)(b)'s medical records note that he complained of being kicked and punched on the ground by an unspecified number of officers, but he did not specify where on his body the assault happened. § 87(2)(b) alleged that PO Escudero tackled § 87(2)(b) into the pile of boxes, with additional officers joining in to punch § 87(2)(b) in the face and kick him in the body. § 87(2)(b) alleged that multiple officers were involved in throwing § 87(2)(b) into the boxes, and corroborated that the officers were kicking and punching § 87(2)(b) on the ground.

PO Escudero stated that § 87(2)(b) pulled away from him to step on the cigarette, and he pulled § 87(2)(b) backward. During the struggle, PO Escudero decided to let go of § 87(2)(b) on top of a pile of soft cardboard as opposed to the concrete sidewalk, in order to subdue § 87(2)(b) in the safest way possible. PO Escudero did not recall if § 87(2)(b) continued to resist on the ground. PO Escudero denied using any additional force against § 87(2)(b). PO Escudero claimed to be the only officer interacting with § 87(2)(b) at the scene. PO Antwi saw PO Escudero wrap § 87(2)(b) in a bear hug and move him in an unknown fashion into the pile of cardboard boxes. PO Antwi denied witnessing PO Escudero or any officer employ any other force against § 87(2)(b).

§ 87(2)(b) denied having visible injuries, and his arrest photo is unremarkable (encl. D20). His arrest entry in the Command Log noted his physical and mental condition as apparently normal (encl. F10-13).

§ 87(2)(b) did not seek any medical attention while in police custody, § 87(2)(b), § 87(2)(a) PHL § 18(6)

§ 87(2)(g)

§ 87(2)(g)

NYPD Patrol Guide Procedure 203-11 requires an officer use the minimum force necessary to take an individual into custody (encl. A1-2).

§ 87(2)(g)

§ 87(2)(g)

. Therefore, it is recommended that Allegation B be **exonerated**.

Allegation C- Abuse of Authority: On May 28, 2014, in front of 4725 White Plains Road in the Bronx, PO Reuben Antwi frisked § 87(2)(b)

It is undisputed that PO Antwi frisked § 87(2)(b)

§ 87(2)(g)

PO Escudero informed PO Antwi that § 87(2)(b) whom PO Escudero pointed out, was rolling a marijuana cigar. PO Antwi did not observe this, but saw, over the course of a few seconds, the various members of § 87(2)(b)'s group shaking hands and turning their heads. He did not specifically see money, drugs, or any objects exchanged. PO Escudero did not pay attention to the group's activities.

As PO Antwi stepped out of the RMP, he observed § 87(2)(b) toss a small white object on the ground, which PO Antwi believed to be crack based on its color and size. He made no other specific observations of § 87(2)(b)'s movements or behavior, nor did he see any bulges to § 87(2)(b)'s person, which was covered by a jacket. At the time he approached, PO Antwi had a full view of § 87(2)(b)'s body and hands.

PO Antwi stated that he frisked § 87(2)(b) to check for weapons, which he suspected due to the lighting conditions of the area being dark, that he had seen the various group members making the furtive movements, and he "was not sure who had what." He denied searching § 87(2)(b). PO Antwi, after the frisk, determined the object § 87(2)(b) threw to be a white candy wrapper or balled-up tissue. § 87(2)(g)

§ 87(2)(g)

Innocuous behavior does not generate a founded or reasonable suspicion that criminality is afoot. People v. Hampton, 200 A.D.2d 466 (1994) (encl. A3-5). The reputation of a location, however notorious, or the time of night does not provide a predicate for unwarranted intrusion and subversion of the Fourth Amendment. People v. Cornelius, 113 A.D.2d 666 (1986) (encl. A22-26). To frisk an individual for safety purposes, an officer must reasonably believe an individual is dangerous by virtue of being armed. People v. De Bour, 40 N.Y.2d 210 (1976) (encl. A6-16). Suspicion of a drug offense does not provide an

officer with reasonable suspicion that the individual possesses a weapon. People v. Gonzalez, 743 N.Y.S.2d 112 (2002) (encl. A17-18).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that Allegation C be **substantiated**.

Allegation D- Abuse of Authority: On May 28, 2014, in front of 4725 White Plains Road in the Bronx, PO Reuben Antwi detained § 87(2)(b)

It is undisputed that § 87(2)(b) was handcuffed and taken to the stationhouse, where he was released with a summons for § 87(2)(a) 160.50.

§ 87(2)(b) did not indicate § 87(2)(b) had littered or committed any other crime. § 87(2)(b) was unable to be successfully contacted by the CCRB to provide a statement, and his summons for § 87(2)(a) 160.50 was dismissed. § 87(2)(a) 160.50 PO Antwi did not specifically observe § 87(2)(b) commit any other offense. PO Escudero stated he was focused on § 87(2)(b) and did not know why § 87(2)(b) was handcuffed. PO Antwi and PO Escudero stated that a large crowd had formed at the location, causing the officers to fear for their safety and opt to remove § 87(2)(b) and § 87(2)(b) to the stationhouse to write the relevant summonses. However, § 87(2)(b) stated that no crowd formed and only § 87(2)(b) and § 87(2)(b) approached the scene.

§ 87(2)(g)

Therefore, it is recommended that Allegation D be **unsubstantiated**.

Allegation E- Abuse of Authority: On May 28, 2014, at the 47th Precinct stationhouse, an officer strip searched § 87(2)(b)

Allegation F- Abuse of Authority: On May 28, 2014, at the 47th Precinct stationhouse, an officer strip searched § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) claimed that they were detained along with § 87(2)(b) on May 28, 2014, and strip searched at the stationhouse by unidentified officers. § 87(2)(b) claimed that he was arrested on May 28, 2014 for an offense he did not recall, which is contradicted by the day's precinct arrest history (encl. F52-53). § 87(2)(b) made no such allegations on their behalf, nor did he indicate § 87(2)(b) and § 87(2)(b) were otherwise detained at the scene and brought to the stationhouse on May 28, 2014. No officer statements or police documentation support that anyone besides § 87(2)(b) and § 87(2)(b) were taken to the stationhouse on May 28, 2014. § 87(2)(g)

§ 87(2)(g)

it is recommended that Allegations E and F be **unfounded**.

Allegation G- Abuse of Authority: On June 18, 2014, in front of 4725 White Plains Road in the Bronx, PO Matthew Escudero frisked § 87(2)(b)

It is undisputed that § 87(2)(b) was transported to the stationhouse and released with § 87(2)(a) 160.50

§ 87(2)(b) alleged that PO Escudero frisked his entire body before handcuffing him. § 87(2)(b) acknowledged that he and § 87(2)(b) were standing in front of 4725 White Plains Road, a supermarket closed at the time of the incident, talking for fifteen minutes. He stated that PO Escudero gave no explanation for why they had to be handcuffed or taken to the stationhouse. PO Escudero had no independent recollection of the incident on June 18, 2014.

§ 87(2)(g)

Therefore, it is recommended that Allegation G be **unsubstantiated**.

Allegation H- Abuse of Authority: On June 18, 2014, in front of 4725 White Plains Road in the Bronx, an officer frisked § 87(2)(b)

As discussed in the "Identification of Subject Officer" section, the investigation was unable to identify the officer who allegedly frisked § 87(2)(b) on June 18, 2014. Therefore, it is recommended that Allegation H be closed as **officer unidentified**.

Allegation I- Abuse of Authority: On June 18, 2014, at the 47th Precinct stationhouse, PO Matthew Escudero strip searched § 87(2)(b) and § 87(2)(b)

It is undisputed that § 87(2)(b) and § 87(2)(b) were taken to the stationhouse and released with § 87(2)(a) 160.50

The Command Log had no notation of a strip search next to their arrest entries.

On June 18, 2014, there was no indication that drugs or other contraband were involved that would warrant a strip search. In contrast, on May 28, 2014, an instance where § 87(2)(b) was arrested for § 87(2)(a) 160.50 and it was undisputed that he attempted to conceal the cigarette on his person, § 87(2)(b) did not allege a strip search at the stationhouse and there was no indication in the Command Log or in his arrest paperwork that one was conducted. Nevertheless, § 87(2)(b) and § 87(2)(b) both alleged that PO Escudero separately strip searched them after they were brought to the stationhouse on June 18, 2014. PO Escudero had no recollection of the incident and neither did Sgt. Lenis (encl. E30-31), the desk officer who verified § 87(2)(b) and § 87(2)(b)'s arrest entries.

§ 87(2)(g) Therefore, it is recommended that Allegation I be **unsubstantiated**.

Allegation J- Abuse of Authority: On June 18, 2014, at the 47th Precinct stationhouse, an officer strip searched § 87(2)(b)

§ 87(2)(b) separately alleged that on June 18, 2014, she was also detained with § 87(2)(b) and § 87(2)(b) and strip searched at the 47th Precinct stationhouse by an unidentified officer. § 87(2)(b) never indicated that § 87(2)(b) was present for the June 18, 2014 incident. No officer statements or police documentation support that anyone besides § 87(2)(b) and § 87(2)(b) were taken to the stationhouse on June 18, 2014.

§ 87(2)(g) it is recommended that Allegation J be **unfounded**.

§ 87(2)(g), § 87(4-b)

Team:

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date